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(12) **United States Design Patent** (10) **Patent No.:** **US D1,087,855 S**
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(54) **TOP RAIL FOR CARGO TRUCK CURTAIN ASSEMBLY**

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(**) Term: **15 Years**

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(52) **U.S. Cl.**
USPC **D12/223**

(58) **Field of Classification Search**
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D12/184, 185, 190, 196, 206, 223;
D3/318
CPC .. B60R 19/02–04; B62D 25/00; B62D 25/02;
B62D 25/08; B62D 25/12; B62D 24/02;
B62D 35/00; B62D 35/007; B62D 37/02;
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B60J 5/107

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D252,471 S * 7/1979 Broadbent D12/400
D253,130 S * 10/1979 Broadbent D25/125
D260,631 S * 9/1981 Kowalski D25/119
D304,921 S * 12/1989 Castagna D12/190
D324,506 S * 3/1992 Phillips D25/119
D356,283 S * 3/1995 Christensen D12/223
D446,181 S * 8/2001 Darbshire D12/223
6,532,625 B1 3/2003 Stone

(Continued)

FOREIGN PATENT DOCUMENTS

AU 2014100071 A4 2/2014
EP 1046531 A1 10/2000

(Continued)

OTHER PUBLICATIONS

31"-204" Telescopic Ceiling Mount Curtain Track System, Wall mounted top mounted curtain track system, available in Amazon.com, date first available Dec. 20, 2023 [online], [site visited Nov. 14, 2024], Available from the internet URL: <https://www.amazon.com/Telescopic-Ceiling-Curtain-mounted-Suitable/dp/B0CQMZVGJP>.*

(Continued)

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(57) **CLAIM**

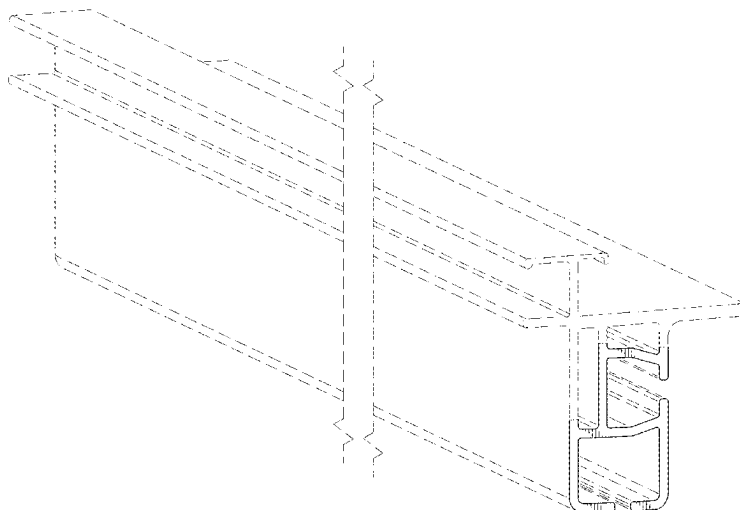
The ornamental design for a top rail for cargo truck curtain assembly as shown and described.

DESCRIPTION

FIG. 1 is a front, top, left perspective view of a top rail for cargo truck curtain assembly showing our new design; FIG. 2 is a front, top, right perspective view thereof; FIG. 3 is a front, lower, left perspective view thereof; FIG. 4 is a front, lower, right perspective view thereof; and, FIG. 5 is a front elevation view thereof.

The dash lines represent portions of the article forming no part of the claimed design. The figures include symbolic breaks in the length of the article, that form no part of the claimed design. The appearance of any portion or length of the article between the break lines forms no part of the claimed design.

1 Claim, 5 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

D477,805 S * 7/2003 LaBelle D12/223
 D478,858 S * 8/2003 LaBelle D12/223
 D552,529 S * 10/2007 Klinkman D12/223
 D598,351 S * 8/2009 Schlater D12/190
 D750,544 S 3/2016 Burhanidust et al.
 D751,024 S 3/2016 Burhanidust et al.
 D753,576 S 4/2016 Burhanidust et al.
 D886,018 S * 6/2020 Sallada D12/190
 11,376,936 B2 7/2022 Schollhammer et al.
 11,390,149 B2 7/2022 Juengling et al.
 11,465,474 B2 10/2022 Schollhammer et al.
 2009/0173022 A1 7/2009 Wu
 2011/0036521 A1 2/2011 Aebi et al.
 2018/0050736 A1 * 2/2018 Teshima B60R 19/04

FOREIGN PATENT DOCUMENTS

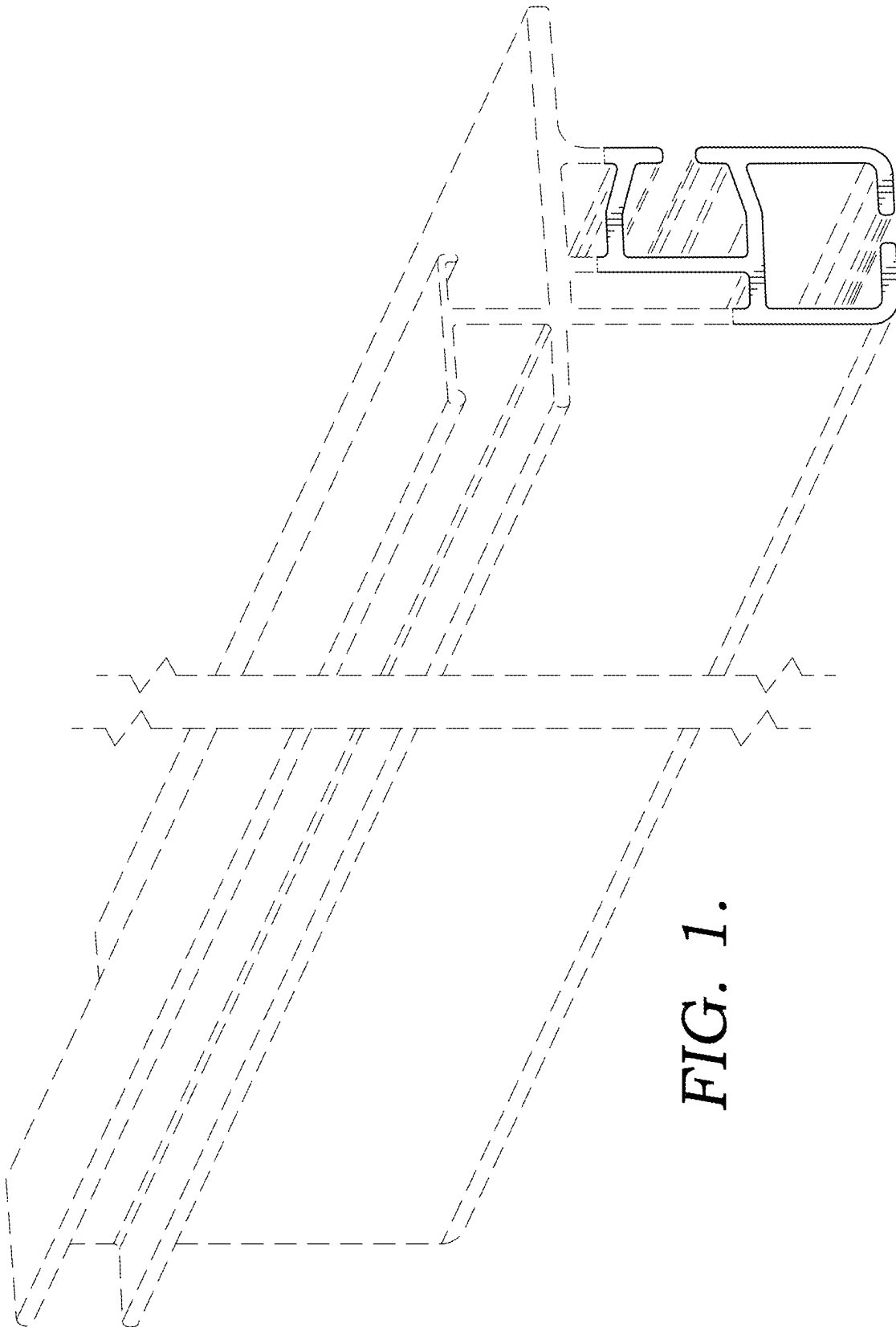
EP 0825047 B1 10/2001
 EP 1733660 A1 12/2006
 EP 2371595 B1 11/2013
 EP 2759432 A2 7/2014

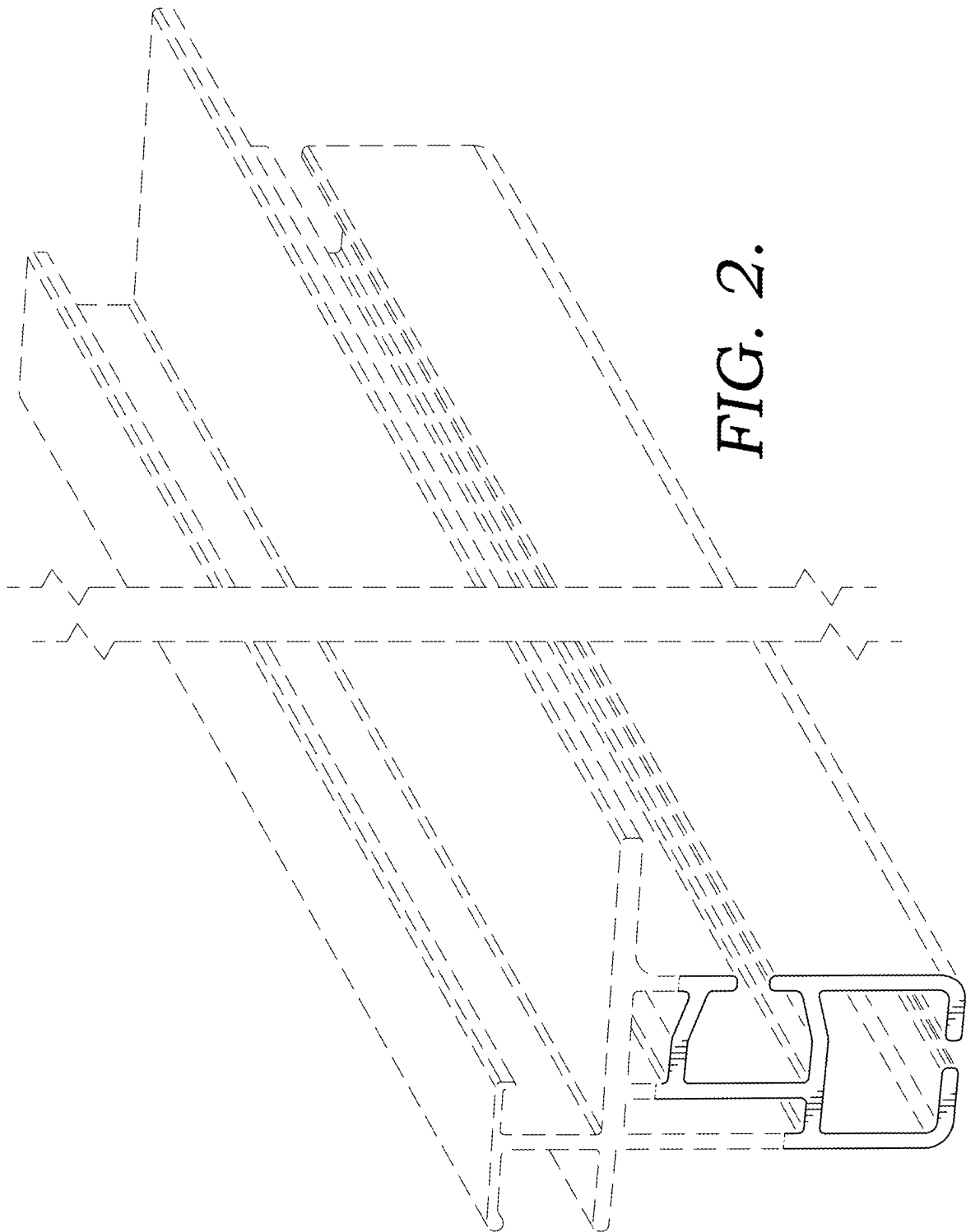
EP 2679423 B1 12/2014
 EP 2465392 B1 4/2016
 EP 3006241 B1 10/2020
 KR 300246270.0000 * 10/1999
 KR 300263223.0000 * 9/2000
 KR 300768249.0000 * 10/2014
 WO 2001012468 A1 2/2001

OTHER PUBLICATIONS

Tipiace Double Curtain Track Heavy-Duty Curtain Rails for Office and Living Room, Ceiling or Wall Mounting, available in Amazon.com, date first available Feb. 18, 2022 [online], [site visited Nov. 15, 2024], Available from the internet URL: https://www.amazon.com/TIPIACE-Curtain-Heavy-Duty-Ceiling-Mounting/dp/B09SV9VWKP?t=*
 EverTrack Curtain Track—Corner Section for Ceiling Curtain Track—USA Made—90 Degree Bend, Pure White, available in Amazon.com, date first available Jul. 15, 2022 [online], [site visited Nov. 15, 2024], Available from the internet URL: https://www.amazon.com/EverTrack-Curtain-Track-Section-Ceiling/dp/B0B6MNZMT4/ref=.*

* cited by examiner





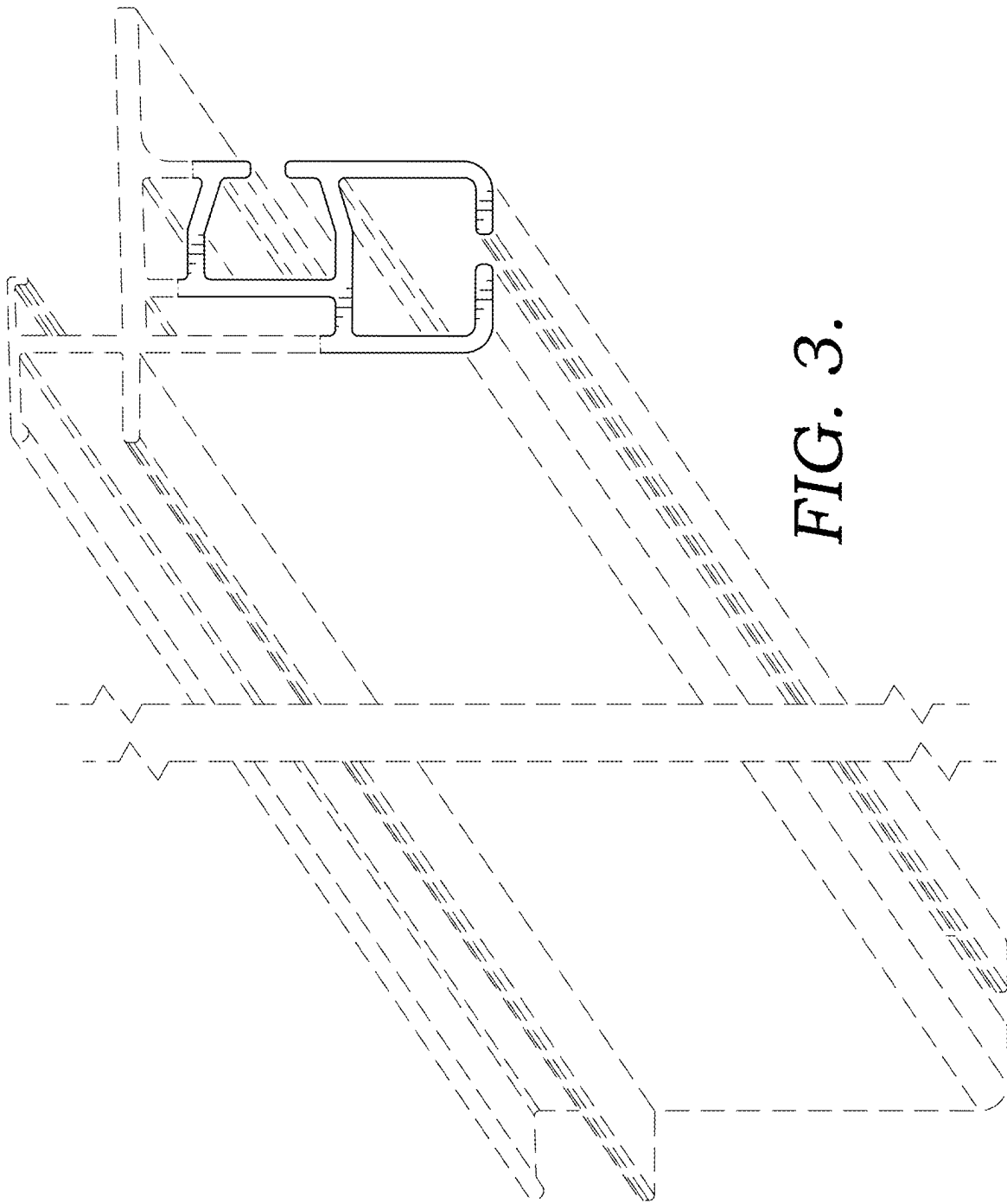


FIG. 3.

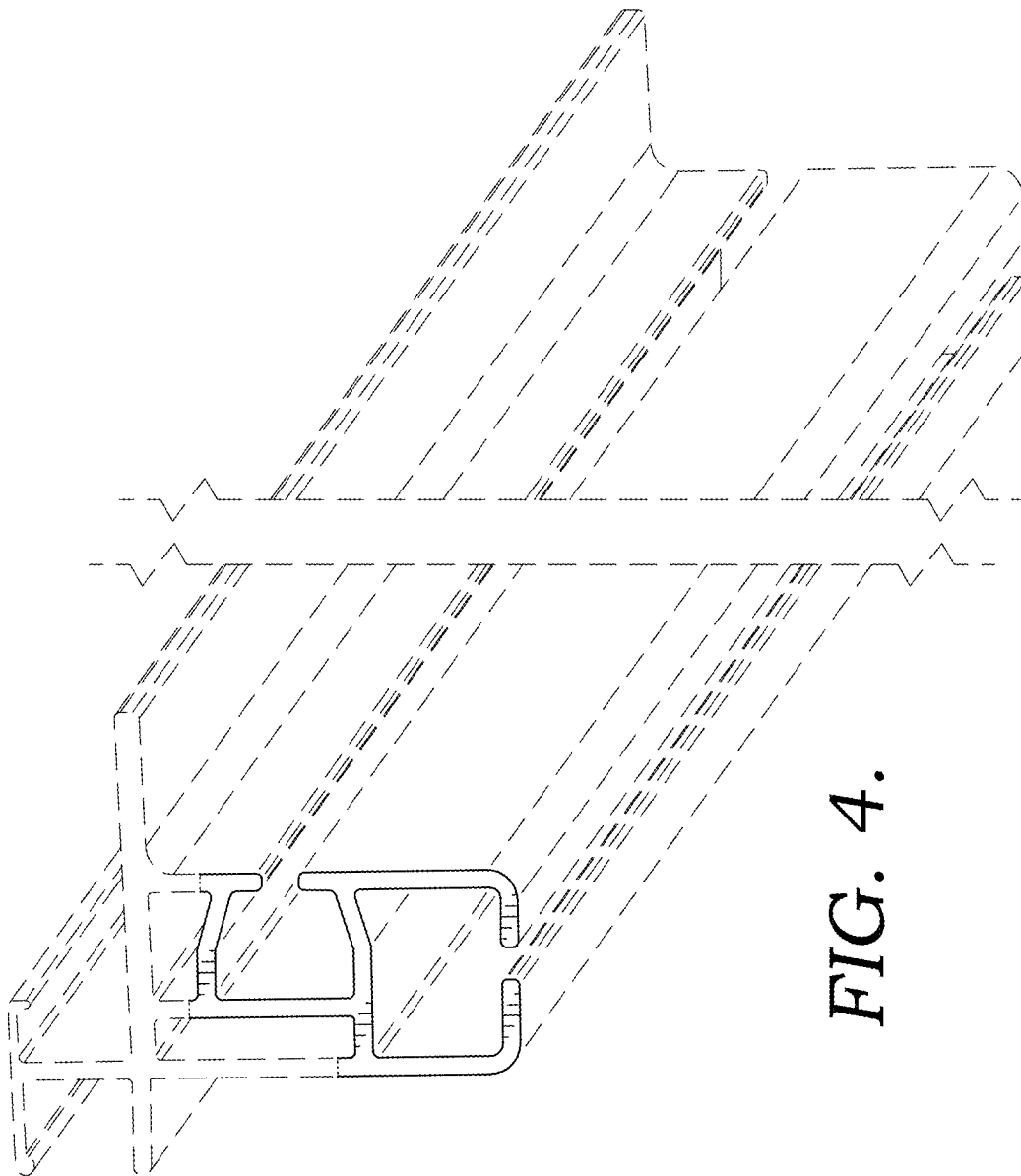


FIG. 4.

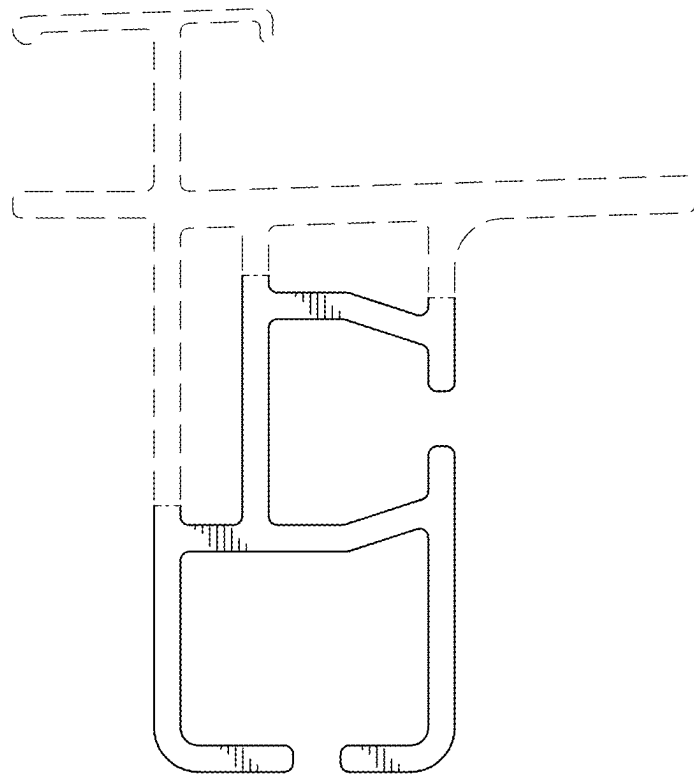


FIG. 5.